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To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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The following comment is from Stefan Gagne.

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The comment is as follows.

The fact that I need to consent to you putting this comment into an AI is quite ironic. Artificial intelligence, generative AI to be specific, currently is bound to copyright law. It should remain bound to copyright law. Just because content is publicly visible on a webpage does not mean it is free from copyright, and artificial intelligence cannot be trained on that material without violating copyright law. This is not fair use. This is unauthorized monetization of other people's copyrighted materials without express consent.

If I was to take a picture of someone painted and put on the web, copy it entirely and put it on my own website and claim that I created it, that would be an obvious violation of law. Why is it any different if an artificial intelligence does the same thing? Let's say that instead of literally copying it, I re-create the entire image down to the finest detail button entirely by hand. That is still a violation of copyright law. Why is it any different if an artificial intelligence does the same thing? The farther down you break this, the law still applies.

The idea that an artificial intelligence system can take inspiration and create a similar work in the same way a human does is not applicable because software cannot have inspiration. Rulings have already gone on record saying that AI generated material cannot be copyrighted because no human was involved in its creation, so there is nothing to have inspiration.

If this is considered fair use, if artificial intelligence is allowed to break copyright law in way that actual humans are not allowed, it's open season on the entire concept of creativity, copyright, and the forward progress of United States culture. If the software is useless without breaking copyright law, then the software is useless and that is that. The government is under no obligation to make open AI profitable by giving them an exclusive loophole not offered to ordinary citizens.

You stand on a precipice, where creative work can be stolen and repurposed at will and without consent. Do not allow this.

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